

CODE

Housing

Draft for member review | 29 September 2026

Plain language summary

One posted waiting list with fixed points, a written offer, and no lock change until notice, 30 days, and a hearing are confirmed. Possession of reserve land still needs council allotment and the Minister under Indian Act section 20. This instrument does not replace that.

Working draft. Not a certificate of possession. Not adopted law. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose and land

1.1 This instrument sets one waiting list, a written offer, and the steps before a lock is changed. It does not transfer title.

1.2 Indian Act subsection 20(1) requires, for lawful possession of reserve land, an allotment by council with the approval of the Minister. A certificate of possession is a Ministerial instrument under that section. A housing allocation under this instrument is a right to occupy a unit on the conditions written here. It is not a certificate of possession. Calling it one does not make it one.

1.3 Council must not use this instrument to surrender or lease reserve land. Indian Act section 38 is the path for surrender and designation.

Part 2. The list

2.1 There is one list for rental units the First Nation assigns. The housing officer must post it, with points and application dates, and must update it within 14 days of any change. A unit assigned to a person who is not the next eligible person on the list is void. The person who made the assignment must not make housing decisions for the rest of the term. The appeal body must post the void assignment within 7 days.

2.2 Points are only these. The housing officer must not add a point for any other reason.

Factor	Points	Proof
Time on the list	1 point for each full year, maximum 10	Application date on the file
Overcrowding	5 points if more than 2 people per bedroom	Written count signed by the applicant
Health need	5 points	Letter from a licensed health professional, dated within 180 days
No current unit of the First Nation	5 points	Housing file
Arrears and no payment plan in good standing	Minus 5 points	Account statement

2.3 A tie goes to the earlier application date. The housing officer must make the offer in writing within 14 days of a unit becoming vacant and must give the applicant 14 days to accept. An oral promise of a unit is void.

Part 3. Occupancy and arrears

3.1 The monthly charge is the amount on the posted schedule adopted with the budget. A councillor must not set a different charge for one household. A different charge is void, and the housing officer must bill the posted charge starting the next month.

3.2 If an account is 30 days in arrears, the housing officer must send a written notice that day. The occupant has 30 days to pay or to sign a payment plan. No lock is changed unless all of these are true: the notice was sent, the 30 days have passed, a hearing was offered on 14 days' notice, and the appeal body has confirmed those facts in writing. A lock change that skips a step is a breach. The housing officer must restore access within 1 day of the appeal body saying so, and the person who ordered the lock change must not make housing decisions for 1 year.

3.3 A councillor who is immediate family of an applicant must not take part in that file. The file goes to the appeal body, which must decide within 30 days.

Part 4. Amendment

4.1 Council must not amend this housing instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

4.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

4.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

4.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, or the rule that members, not council alone, amend a law does not pass under 4.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

4.5 The electoral officer must post the count within 3 days.

Part 5. Review and coming into force

5.1 The appeal body must review this housing instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this housing instrument.

5.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 4, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

5.3 this housing instrument comes into force on the day after the electors approve it under Part 4. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

5.4 Where a law already in force sets its own replacement rule, this housing instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

5.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.